POLICY NAME	POLICY ON HARASSMENT AND DISCRIMINATION
Approving Body	Board of Governors
Initial Approval Date	Senate: December 7, 2005 Board of Governors: December 12, 2005
Date of last review	May 22, 2025
Date of next review	2028-2029 academic year
Executive Sponsor	Provost and Executive Vice-President (Academic)

Related Documents	Procedures Related to the Policy on Harassment and Discrimination

STATEMENT OF PRINCIPLE

McGill University is committed to excellence in teaching, learning, and research and to fostering a community founded upon the fundamental dignity and worth of all its members. The University recognizes that such excellence can only flourish in an equitable environment in which all members of the University, at all levels, regardless of the nature of their work or area of study are free from Harassment and Discrimination. The University is also committed to establishing clear and effective processes and resources for preventing and responding to Harassment and Discrimination.

McGill acknowledges that, while Harassment and Discrimination can affect all members of the University community, members of underrepresented groups experience a disproportionate risk and impact in regard to these forms of misconduct, especially Discrimination. The University further recognizes that members of underrepresented groups may experience intersecting forms of systemic discrimination or barriers on grounds, for example, of gender, sexual orientation, gender identity and expression, race, religion, Indigenous identity, ethnicity, disability or class.

Acts of Harassment and Discrimination are University offences subject to disciplinary measures.

STATEMENT OF RESPONSIBILITY

The University shall take measures aimed at creating and maintaining an environment free from Harassment and Discrimination.

The University shall take reasonable action to prevent Harassment and Discrimination, and, whenever it becomes aware of such behaviour, to put an end to it. Nothing in this Policy relieves administrators from the responsibility of addressing situations of inappropriate behaviour in accordance with good management practices, regardless of whether a specific Report under this Policy has been received.

Nothing in this Policy relieves the University from its obligations under the *Labour Standards Act* of Quebec.

The University, through a designated office, shall strive to provide all members of the University an environment that is free of Harassment and Discrimination through the effective application and administration of this Policy. This will include offering educational initiatives aimed at raising awareness about and preventing Harassment and Discrimination and at informing the community about this Policy and the University's processes related to this Policy, which may result in mediation or investigation of Reports.

Particular onus is placed on those in positions of academic and administrative authority (e.g., Deans, Chairs and Directors, Managers) to be aware of this Policy and its Procedures, including what constitutes Harassment and Discrimination and how Reports of Harassment and Discrimination can be addressed. They are also required to implement and use appropriate and active management practices consistent with the achievement of the goals of this Policy.

Each Member of the University Community shares responsibility for respecting the dignity of, and giving fair treatment to, all members of the University community. Moreover, each person is responsible for promoting and maintaining an equitable environment free from Harassment and Discrimination, as defined in Section 1.

SECTION 1 – OBJECTIVES

1. This Policy shall have as its objectives:

    1.1. preventing Harassment and Discrimination by means of education and other proactive efforts to promote awareness about equity among members of the University community, including the nature of Harassment and Discrimination.

    1.2. ensuring that the University's policies and procedures foster an environment free of Harassment and Discrimination, including by striving to identify, prevent, and address systemic and structural forms of these harms.

    1.3. ensuring that Procedures are in place to address Reports of Harassment and Discrimination.

SECTION 2 – SCOPE AND JURISDICTION

2.1. This Policy shall apply to all members of the University community where the alleged Harassment or Discrimination occurred in a University Context and where each party is a Member of the University Community at the time a Report is filed and at the time the incidents alleged in the Complaint occurred.

2.1.1. An exception to Section 2.1 is made for a Report brought by a former student against a Respondent who exercised academic authority over that student. Such a Report may be brought after the student's graduation or withdrawal from the University within the delay set by Section 2.5 if the Respondent is a member of the University Community when the Report is filed and at the time of the incident(s) alleged in the Report.

2.2. A Report is not covered by sections 2.1 or 2.1.1 is outside of this Policy's scope and thus not receivable for mediation or investigation under this Policy.

2.3. While this Policy does not apply to employees of third-party entities with whom the University engages in contracts to provide services on our campuses and/or to Members of the University Community, the University shall ensure that such entities are informed about this Policy at the time of reaching a contractual agreement and of the expectation that employees of such entities will, when working at the University and/or with Members of the University Community, respect the terms of this Policy.

2.4. Where a Member of the University Community wishes to report Harassment or Discrimination by an employee of a third-party service provider, this can be done through the OMR. The OMR will in such cases provide information regarding:

2.4.1. how to raise the matter with the unit at the University responsible for the service contract, in which case that unit, once notified, must be address the matter with the service provider concerned; and

2.4.2. the possibility for making a report under this Policy against the Member of the University Community with authority for the contract, notably in relation to systemic forms of Harassment and/or Discrimination by the service provider concerned.

2.5. This Policy does not apply where the most recent incident occurred more than 24 months prior to the initiation of a Report.

2.6. This Policy does not and cannot apply to the affairs of corporations associated with McGill University but legally independent from it, such as student societies (PGSS, SSMU, student faculty associations, etc.) or staff unions and associations (AGSEM, AMPE, AMPFA, AMPL, AMURE, AMUSE, MAUT, MUNACA, MUNASA, SEU, etc.). Such corporations have independent legal rights and obligations, and are responsible for their own actions, including actions of their officers and members acting in respect of the corporation.

2.7. Nothing in this Policy precludes either party from exercising any internal or external recourse available. This does not abridge the University's right to take disciplinary or other appropriate measures in the case of Bad Faith Reports.

2.8. This Policy is to be interpreted in a manner that is consistent with the goals set out in the "Statement of Principle," as well as with the provisions of the *Civil Code of Québec*, the *Quebec Charter of Human Rights and Freedoms*, and Quebec's *Labour Standards Act*.

SECTION 3 – DEFINITIONS

3. For the purpose of this Policy:

3.1. "**Advisor**", so identified, means a Member of the University Community, or a local union representative, who has agreed to act in an advisory capacity. Advisors are not paid for their services.

3.2. **"Assessor"** means a person responsible, in accordance with this Policy, to investigate Reports. An Assessor is normally an employee of the University who works within the OMR. The University may, when it deems necessary, refer a Report made under this Policy to an Assessor external to the University who has the necessary skills to conduct a competent, fair investigation under this Policy.

3.3. **"Bad Faith Report"** means a Report that is premised on claims the Reporter knows to be false and is made with an intent to deceive.

3.4. **"Days"** means calendar days.

3.5. **"Discrimination"** means discrimination prohibited by law and includes any action, behaviour, or decision based on race, colour, sex, gender identity, gender expression, pregnancy, family status, sexual orientation, civil status, age (except as provided by law), religion, political conviction, language, ethnicity, national origin, social condition, a disability or the use of any means to palliate a disability, which results, directly or indirectly, in the exclusion or preference of an individual or group within the University community. This includes both the actions of individual members of the University and systemic institutional practices and policies of the University.

3.6. **"Harassment"** means any vexatious behaviour by one Member of the University Community towards another Member of the University Community, in the form of repeated hostile or unwanted conduct, verbal comments, actions or gestures, that affect the dignity or psychological or physical integrity of a Member of the University Community and that result in a harmful environment for such an individual. A single serious incidence of such behaviour that has a lasting harmful effect on such an individual may also constitute Harassment.

3.7. **"Member of the University Community"** means

3.7.1. anyone holding office under the University Charter and Statutes;

3.7.2. an appointee or employee of the University; or

3.7.3. a student as defined in Section 1 of the *Code of Student Conduct and Disciplinary Procedures*.

3.8. **"Office for Mediation and Reporting"** or **"OMR"** means the University office dedicated to overseeing the prevention and resolution of Harassment and Discrimination, which is charged with the independent and impartial oversight and resolution of all Reports filed under this Policy. The OMR also shall have responsibility for education and awareness-raising as established by Section 5.

3.9. **"Procedural Fairness"** means a process: (i) based on impartiality and absence of bias; (ii) where the parties are informed of the allegations made against them in a timely manner; (iii) that includes a meaningful opportunity to defend against such allegations, including the right to be given sufficient notice of interviews or meetings where they are expected to present evidence or their perspective on and respond to the facts or on evidence gathered as part of the process; and (iv) leading to a decision that includes a sufficiently detailed explanation of the grounds on which it is based in such a way that the parties can understand the basis on which it is made. For

greater clarity, Procedural Fairness requires that a respondent has had a fair chance to respond to any evidence that the Assessor deems relevant to an investigation.

3.10. **"Report"** means an allegation of Harassment or Discrimination filed with the OMR by a Member of the University Community or by a person who is an employee or holds an appointment with an institution where students of the University are trained and which is, directly or indirectly, a party to an affiliation agreement with the University, against a Member of the University Community in accordance with this Policy.

3.11. **"Reporter"** means a Member of the University Community, or a person who is an employee or holds an appointment or is a trainee within an institution where students of the University are trained and which is, directly or indirectly, a party to an affiliation agreement with the University, who considers that they or another Member of the University Community are the object of Harassment and/or Discrimination as defined by the Policy, and who has filed a Report against another Member of the University Community in accordance with this Policy.

3.12. **"Respondent"** means a Member of the University Community against whom a Report has been filed in accordance with this Policy.

3.13. **"University Context"** means an occurrence:

3.13.1. on University premises;

3.13.2. within the context of a University-sponsored program or event or activity whether on-campus or off-campus (e.g., University-sponsored competitions or field trips/studies, workplace retreats or social events organized by a person in authority for an office or unit); or

3.13.3. off-campus, including online or in social media, where the conduct has consequences that may be reasonably seen to adversely affect:

- the safety of students, faculty or staff while on campus or while participating in a University-sponsored program, event or activity; or
- the right of a Member of the University Community to use and enjoy the University's learning or working environment.

3.14. "**University Disciplinary Authority**" means:

3.14.1. in the case of a student, the disciplinary officer as defined in the *Code of Student Conduct and Disciplinary Procedures*;

3.14.2. in the case of a member of academic staff, the Dean of the Faculty in which the staff member is appointed, or the Dean's delegate;

3.14.3. in the case of a member of the administrative or support staff, the staff member's immediate supervisor;

3.14.4. in the case of a Vice-President, the President; and

3.14.5. in the case of the President, the Chair of the Board of Governors.

3.15. All references to the Provost and Executive Vice-President (Academic) ("Provost") include a delegate.

SECTION 4 – RIGHTS OF THE PARTIES

4.1. Throughout a process conducted under this Policy, the parties and witnesses may be accompanied by an Advisor.

4.2. Throughout a process conducted under this Policy, parties may request reasonable accommodation facilitating participation in such process if the lack of accommodation would be a source of discrimination.

4.3. Throughout a process conducted under this Policy, information obtained will be treated confidentially. Confidentiality will not be maintained:

4.3.1. when information must be disclosed to prevent an imminent threat to the life, safety or security of a person; or

4.3.2. when disclosure is otherwise required by law.

4.4. The OMR will apprise the parties in the event of a breach of their rights to confidentiality.

SECTION 5 – PROMOTION OF AWARENESS

5.1. In pursuit of the objectives described in Section 1, the University, principally through the OMR, shall take measures to provide education, guidelines and the dissemination of information relating to such matters as the meaning and impacts of Harassment and Discrimination, strategies for advancing equity, how to report Harassment and Discrimination, and support resources for members of the University community who experience Harassment and/or Discrimination. Education and awareness initiatives about this Policy shall be pursued in accordance with Appendix 1.

SECTION 6 – RESPONDING TO REPORTS

6.1. Reports shall be filed with the OMR, whose staff shall have qualifications and expertise relevant to: preventing and responding to Harassment and Discrimination; mediation; investigations; and advancing equity, diversity, and inclusion in learning and employment contexts.

6.2. Reports shall be resolved by mediation or by an investigation, following the Procedures that accompany this Policy.

6.2.1. Mediation shall be conducted by a qualified, impartial mediator appointed by the University. In most instances, the mediator will be a full-time member of the OMR staff, but the University may refer a Report to an external mediator where circumstances warrant.

6.2.2. Investigations shall be conducted by a qualified, impartial Assessor appointed by the University for this purpose. In most instances, the Assessor will be a full-time member of the OMR staff, but the University may refer a Report to an external Assessor where circumstances warrant, for example, where there is a conflict of interest, where one of the parties is a staff member in the OMR, where one of the parties is a member of the University's senior administration, or where the internal resources within the OMR do not permit the timely investigation of a Report filed under this Policy.

6.3. Unless required to disclose information for the purpose of investigating allegations of Harassment and/or Discrimination, or in the context of internal or external recourses such as grievances or similar complaints, the parties, witnesses and their advisors, as well as the OMR staff and Assessors, shall respect the privacy of the parties and shall maintain the confidentiality of information shared with or by them in the context of a mediation or investigation process under this Policy. Parties are, however, permitted to share relevant information about these processes for the purposes of accessing health and counselling services, academic and/or workplace accommodations, or advising in connection with University policies and procedures.

6.3.1. A Member of the University Community who disregards the duty to respect confidentiality as set by Section 6.3 may violate the privacy rights of another Member of the University Community. Such conduct may be cause for discipline against the Member of the University Community who violated confidentiality.

6.4. When conducting an investigation, the Assessor shall not be permitted to access to a party's medical records, unless a party wishes to put this material in evidence.

6.5. Subject to the *Procedures* that accompany this Policy, the parties, witnesses, and any University employee contacted by an Assessor because they may have information or material relevant to an investigation have a duty to reply promptly to the Assessor and to participate in, and cooperate with, the investigation. Where the *Procedures* do not provide otherwise, parties, witnesses, and any University employee contacted by an Assessor must reply to the Assessor within no more than seven (7) Days.

Immediate Measures

6.6. Where the OMR has reasonable grounds to believe that a party's conduct presents a threat to the wellbeing or safety of themselves or others, OMR staff shall consult with the University Disciplinary Authorities and other relevant offices (e.g., Security Services, and/or Legal Services) about the implementation of immediate measures necessary to uphold the safety and wellbeing of the persons concerned.

6.7. Immediate Measures shall be implemented in accordance with the *Procedures* that accompany this Policy.

SECTION 7 – PROTECTION OF THE PARTIES

7.1. No action shall be taken by the University or a Member of the University Community against the Reporter, the Respondent, or a witness in an investigation or mediation because of a Report

filed pursuant to this Policy. This does not abridge the University's right to take disciplinary or other appropriate measures in the case of Bad Faith Reports.

7.1.1. For greater clarity, the finding that a Report made under this Policy is a Bad Faith Report can be made only by an Assessor in the context of an original or subsequent investigation.

7.2. Should a party feel that there has been a failure to comply with the Provost's decision, or should a concern related to the original Report arise following the Provost's decision (e.g., recurrence of behavior described in the Report), the matter may be referred to the OMR. The OMR shall address the matter with the Provost, who shall decide on the need for subsequent measures, including referral to the relevant disciplinary officer for disciplinary or administrative measures.

SECTION 8 – CONFLICTS OF INTEREST

8.1. This Policy shall be interpreted to be consistent with the *Regulation on Conflict of Interest*.

8.1.1. For greater clarity, where a report involves as a party, whether as a Reporter or a Respondent, any of the following:

- a staff member of the OMR, including the Associate Director
- the Provost, Deputy Provost, or Associate Provost
- the President or a Vice-President

the Report shall be filed with the Secretary General rather than the OMR and shall be investigated by an external Assessor. All decisions related to or resulting from the Report, including the administration of any disciplinary and/or administrative measures, if applicable, shall be overseen by the Respondent's Reporting Officer as defined in the *Regulation on Conflict of Interest*.

SECTION 9 – ACADEMIC FREEDOM AND INCLUSIVENESS

9.1. Although Members of the University community are expected to conduct themselves responsibly and respectfully in view of the University's commitment to equity and inclusiveness, this Policy shall not abridge the University's *Policy on Academic Freedom*.

9.2. Prohibitions against Harassment and Discrimination do not extend to statements or materials used as part of courses that are relevant and appropriately related to the subject matter of such courses.

SECTION 10 – ANNUAL REPORT

10.1. The Provost shall report annually to Senate and the Board of Governors on the application of this Policy.

SECTION 11 – POLICY REVIEW AND OVERSIGHT

11.1. This Policy shall be reviewed at least every three years by a working group, comprising:

- the Provost or delegate (as Chair);
- one representative each of MAUT, AMPL, MUNASA, MUNACA, AGSEM, AMURE, AMUSE, MCLIU, SEU, SSMU, PGSS, MACES, MCSS and Joint Board-Senate EDI Committee;
- the Associate Director and two Assessors within the OMR; and
- an Equity Education Advisor.

11.2. There shall be an annual meeting convened by the Provost or delegate of the working group identified in Section 11.1 to review the operation of this Policy. These annual meetings will review:

11.2.1. the University's efforts to meet the Objectives of this Policy articulated in Section 1 and means of enhancing such efforts; and

11.2.2. the circumstances under which Reports have been withdrawn, and the nature of Reports that have resulted in informal or formal resolutions. This review process will be anonymous, with the working group not having access to any nominative or identifying information regarding any party to a Report under this Policy.

11.3. At the annual meeting referred to in Section 11.2, the working group may request to meet one or more of the Assessors or mediators who carried out work under this Policy to discuss the processes of their work in a manner that preserves the privacy of any party or witness involved with a file arising under this Policy.

11.4. The working group may request that representatives from particular University units (e.g., Student Services, University Residences, Human Resources), employee resource groups (ERGs), or stakeholder associations (e.g., Dr. Kenneth Melville Black Faculty and Staff Caucus, Black Students' Network, Queer McGill, Indigenous Students' Alliance) provide input or written submissions where this would be helpful to inform decisions about the Policy implementation and review.

Legislative History:

Approved:		
Senate	December 7, 2005	Minute 5
Board of Governors	December 12, 2005	Minute 7
Amendments:		
Senate	December 2, 2009	Minute 3.1
Executive Committee	December 7, 2009	Minute 5.1.2
Senate	December 4, 2013	Minute IIB4
Executive Committee	January 16, 2014	Minute 11.1
Senate	May 15, 2017	Minute IIB3
Board of Governors	May 25, 2017	Minute 18.3
Senate	February 20, 2019	Minute 3
Executive Committee	March 28, 2019	Minute 6.2

Senate	May 12, 2021	Minute IIB3
Board of Governors	May 20, 2021	Minute 14.1
Senate	May 7, 2025	Minute IIB3
Board of Governors	May 22, 2025	Minute 14.2

Appendix 1: Implementation of Section 5

- Delivery, across the campuses, of equity education through multiple formats, such as: in-person facilitated sessions delivered by a diverse team of skilled equity education advisors, events that recognize, commemorate and celebrate the presence of diverse groups at McGill, the development and delivery of equity, anti-Harassment, and anti-Discrimination education materials and modules, both online and in print, and the construction and maintenance of a website that advises the McGill community of our rights and responsibilities vis-à-vis a safe, respectful and inclusive campus climate for all, as well as the vehicles available to any member of the McGill community who feels that they may be the target of Harassment or Discrimination.

- Workshops and educational/awareness-raising measures focused on understanding the causes and effects of particular forms of social oppression, with a view to identifying, preventing, and addressing them in a University context, that include but are not limited to:
    - Ableism
    - Anti-Asian, Anti-Black, and Anti-Indigenous Racism
    - Antisemitism
    - Homophobia, Biphobia, and Transphobia
    - Islamophobia
    - Misogyny and Gender-Based Violence

- Promotion of the Policy through regular communications across the campuses.

- Regular workshops through the following fora by the OMR in collaboration with key partners such as Human Resources and the Office of the Dean of Students:
    - Academic Leadership Forum (ALF)
    - Faculty Matters
    - New faculty orientation
    - New academic leaders' orientation
    - HR Advisors sessions
    - HR community of practice
    - M-Forum
    - Skillsets

on the following topics:

- What is Harassment and Discrimination? How do they manifest in a workplace?
- Respectful workplace and learning environments
- Responding to disclosures of Harassment and Discrimination
- Reporting incidents of Harassment and Discrimination

- Collaboration with units engaged in related areas (e.g., Human Resources, Graduate and Postdoctoral Studies, Office of the Ombudsperson, Office of the Dean of Students, Student Services, Legal Services) to make available resources better known.